

HOUSE No. 2001

The Commonwealth of Massachusetts

PRESENTED BY:

Alyson M. Sullivan-Almeida

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to protecting domestic violence victims.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>1/16/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/30/2025</i>

HOUSE No. 2001

By Representative Sullivan-Almeida of Abington, a petition (accompanied by bill, House, No. 2001) of Alyson M. Sullivan-Almeida relative to protecting domestic violence victims. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1776 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to protecting domestic violence victims.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 18C of Chapter 265 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by deleting the section in its entirety and replacing it with the
3 following:-

4 (a) Whoever knowingly, in the day time or night time, breaks and enters a building,
5 ship, vessel or vehicle or otherwise illegally enters into the dwelling place of another and
6 discovers that one or more persons are present shall have an immediate duty to retreat. Any
7 person or persons who have illegally entered under this section and have failed to retreat shall
8 forfeit any rights to civil or criminal action against the legal occupants for any injuries incurred.

9 (b) Whoever knowingly, in the day time or night time, breaks and enters a building,
10 ship, vessel or vehicle or otherwise illegally enters into the dwelling place of another where one
11 or more minors are present shall have an immediate duty to retreat. Any person or persons who
12 have illegally entered under this section and have failed to retreat shall forfeit any rights to civil
13 or criminal action against the legal occupants for any injuries incurred. Further, any person who
14 is found guilty of illegally entering under this section where one or more minors are present shall
15 be punished by imprisonment in the state prison for any term not less five years.

16 (c) Whoever, in the day time or night time, breaks and enters a building, ship, vessel
17 or vehicle or otherwise enters into the dwelling place of another knowing or having reason to
18 know that one or more persons are present within or knowingly enters the dwelling place of
19 another and remains in such dwelling place knowing or having reason to know that one or more
20 persons are present within while armed with a dangerous weapon, uses force or threatens the
21 imminent use of force upon any person within such dwelling place whether or not injury occurs,
22 or intentionally causes any injury to any person within such dwelling place shall be punished by
23 imprisonment in the state prison for life or for any term of not less than twenty years.